

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 09/08/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L21-06696
CASE NAME: STATES RECOVERY SYSTEMS, INC. VS. GARY WATSON
***HEARING ON MOTION IN RE: NTC AND MTN TO TAX COST**
FILED BY: WATSON, GARY
TENTATIVE RULING:

Defendant has filed a Motion to Tax Costs, but there is no indication that he provided notice to the Plaintiff.

Disposition

This motion will be continued to 1/12/27 at 9 a.m.

Defendant to provide notice to Plaintiff of hearing date as well as serve a copy of the motion.

2. 9:00 AM CASE NUMBER: L22-01864
CASE NAME: BANK OF AMERICA, N.A. VS. REKKI GRANT
***HEARING ON MOTION IN RE: TO ENFORCE SETTLEMENT (CCP 664.6)**
FILED BY: BANK OF AMERICA, N.A.
***TENTATIVE RULING**

Plaintiff filed a motion to enforce settlement, under Section 664.6 of the CCP.

The motion is unopposed, but there is no evidence that Plaintiff provided any notice of the hearing date to Defendant or served a copy of the motion.

Disposition

This motion will be continued to 1/12/27 at 9 a.m.

Plaintiff to provide notice of the hearing to Defendant, and to serve a copy of the motion.

3. 9:00 AM CASE NUMBER: L23-05751

CASE NAME: CITIBANK, N.A. VS. PATRICIA TEOTONIO

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK, N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed, but the Plaintiff provided mail service of the Motion and notice of the hearing to an address for the Defendant that has not been used in this case (Santos Lane). Defendant did not provide an Answer, has filed no other pleadings, but Plaintiff personally served Defendant at a different address (Homestead).

It is unclear from where Plaintiff has acquired this Santos Lane address. There is no evidence that it actually is a proper mailing address for Defendant.

Thus, this court does not find that Plaintiff has properly notified Defendant of this Motion.

Disposition

Motion will be continued to 1/12/27 at 9 a.m.

Plaintiff to provide proper notice of hearing and to serve copy of Motion on Defendant.

4. 9:00 AM CASE NUMBER: L24-08932

CASE NAME: CITIBANK, N.A. VS. DOMINIC COSMI

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

***TENTATIVE RULING**

Plaintiff originally filed a Motion to enter judgment per stipulation on 5/1/26, with a hearing date of 8/4/26. However, on 8/6/26, this court found that Plaintiff had not properly noticed Defendant, because there was no evidence that the address they used to provide notice was, in any way, linked to the Defendant. As of 8/6/26, Defendant had